NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("Agreement") is entered into as of May 20, 2025 ("Effective Date") between:

***ABC GmbH**, a company organized under the laws of the Federal Republic of Germany, with its registered office at ABC-strasse 42, 80339 Munich, Germany (the "Disclosing Party" or "ABC"), and*

***Rheinberg Engineering AG**, a company organized under the laws of the Federal Republic of Germany, with its registered office at Koenigstrasse 28, 70173 Stuttgart, Germany (the "Receiving Party" or "Counterparty").*

1. Purpose.

The Disclosing Party wishes to disclose certain confidential information to the Receiving Party for the purpose of enabling the Receiving Party to evaluate a potential joint venture in precision engineering and manufacturing (the "Purpose").

2. Confidential Information.

"Confidential Information" means any information disclosed by the Disclosing Party to the Receiving Party that is marked as "Confidential" at the time of disclosure. Information disclosed orally shall be confirmed as confidential in writing within thirty (30) days of disclosure.

3. Exceptions.

Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was already in the Receiving Party's possession prior to disclosure, as evidenced by written records; or (c) is independently developed by the Receiving Party without use of or reference to the Confidential Information, as evidenced by contemporaneous written records.

4. Obligations.

The Receiving Party shall protect Confidential Information using at least the same degree of care it uses for its own confidential information, but no less than reasonable care. The Receiving Party shall use Confidential Information solely for the Purpose.

5. Permitted Recipients.

The Receiving Party may disclose Confidential Information only to its employees who have a direct need to know in connection with the Purpose, provided such employees are bound by written confidentiality obligations no less restrictive than those in this Agreement. Disclosure to affiliates, agents, advisors, or contractors requires the prior written consent of the Disclosing Party.

6. Compelled Disclosure.

If the Receiving Party is required by law or regulation to disclose Confidential Information, it shall promptly notify the Disclosing Party (to the extent legally permitted) and cooperate to limit the scope of disclosure.

7. No Warranty.

All Confidential Information is provided "AS IS." The Disclosing Party makes no warranty as to its accuracy, completeness, or fitness for any purpose. However, the Disclosing Party represents in good faith that, to the best of its knowledge as of the date of each disclosure, the Confidential Information provided is not knowingly misleading in any material respect.

8. No Rights Granted.

Nothing in this Agreement grants the Receiving Party any license, right, or interest in the Disclosing Party's intellectual property, patents, copyrights, trade secrets, or know-how. Disclosure does not constitute a transfer of ownership.

9. Return or Destruction.

Upon written request or termination of this Agreement, the Receiving Party shall within thirty (30) days return or destroy all Confidential Information, including all copies, summaries, and extracts, and shall provide written certification of such return or destruction signed by an authorized officer. The Receiving Party may retain copies solely to the extent required by applicable law or regulation, provided that any such retained copies remain subject to the obligations of this Agreement for the duration of their retention.

10. Term and Confidentiality Period.

This Agreement shall remain in effect for a period of two (2) years from the Effective Date, unless terminated earlier by either Party upon sixty (60) days' written notice. The confidentiality obligations shall survive for a period of four (4) years from the date of each individual disclosure.

11. Liability.

No contractual penalty shall apply under this Agreement. The Receiving Party's liability for any breach of this Agreement shall be limited to direct damages actually incurred by the Disclosing Party, up to a maximum aggregate amount of EUR 500,000 (five hundred thousand euros). Neither Party shall be liable for indirect, incidental, or consequential damages. Remedies for breach shall be limited to actual damages proven by the aggrieved Party.

12. Non-Solicitation.

During the term of this Agreement, neither Party shall directly solicit for employment any employee of the other Party who has been personally involved in the exchange of Confidential Information under this Agreement. This restriction does not apply to general recruitment advertising or to any employee who responds to such advertising without direct solicitation. This clause shall not survive termination or expiration of this Agreement.

13. Governing Law.

This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Germany, without regard to its conflict of laws principles.

14. Dispute Resolution.

Any dispute arising out of or in connection with this Agreement shall be finally settled by arbitration administered by the Deutsche Institution für Schiedsgerichtsbarkeit e.V. (DIS) under the DIS Arbitration Rules then in effect. The seat of arbitration shall be Frankfurt am Main, Germany. The arbitral tribunal shall consist of one (1) arbitrator. The language of the arbitration shall be German. Nothing in this clause prevents either Party from seeking injunctive relief from a court of competent jurisdiction.

15. General.

This Agreement constitutes the entire agreement between the Parties regarding the subject matter hereof. Amendments must be in writing and signed by both Parties. This Agreement may be executed in counterparts.

***IN WITNESS WHEREOF**, the Parties have caused this Agreement to be executed by their duly authorized representatives.*

ABC GmbH	**Rheinberg Engineering AG**
Name: _____	Name: _____
Title: _____	Title: _____
Signature: _____	Signature: _____
Date: _____	Date: _____